

25STCV09113 25STCV09113

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Case Number: 25STCV09113 Hearing Date: July 15, 2026 Dept: 735

Soriano v. EAN Holdings, LLC, et al.

Defendants EAN Holdings, LLC and Enterprise

Rent-a-Car Company's Demurrer to Complaint

BACKGROUND

On March 27, 2025, Plaintiff Darline

Guadalupe Cruz Soriano filed a complaint against Defendants EAN Holdings, LLC, Enterprise Rent-a-Car Company and Lukasz Dziewicki, asserting causes of action for motor vehicle negligence, general negligence and negligent entrustment.

Plaintiff alleges she was injured in a motor vehicle accident when Defendant Dziewicki, who was operating a vehicle owned by and rented from Defendants EAN Holdings, LLC and Enterprise Rent-a-Car Company, failed to stop at an intersection.

DISCUSSION

Defendants

EAN Holdings, LLC and

Enterprise Rent-a-Car Company demur to the complaint on the ground that it fails to state sufficient facts. Moving

Defendants also assert that under 49 U.S.C. § 30106, rental car companies are not vicariously liable for torts committed by rental car drivers unless the rental car company has committed a separate tort.

Plaintiff

alleges moving Defendants owed "Plaintiff a duty to exercise reasonable

care in the ownership, maintenance, entrustment of the subject vehicle at the time of the subject incident” and “breached their duty by failing to own, maintain, entrust and operate the subject vehicle in a safe and reasonable manner.” In reviewing a demurrer, a court need not accept conclusions of law. Plaintiff also alleges Defendants “knew or had reason to know” that Defendant Dziewicki was “incompetent and unfit to drive the subject vehicle.” These allegations are insufficient to state claims of negligence against moving Defendants.

CONCLUSION

The Court sustains Defendants' demurrer. Because Plaintiff did not file an opposition requesting leave to amend, the demurrer is sustained without leave to amend.

Defendants to give notice.